

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order, and serve Defendant with a copy of the filed Order.

12. 9:00 AM CASE NUMBER: L25-11390

CASE NAME: CITIBANK N.A. VS. EUGENE WOOLFORK

***HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT AND JUDGMENT, IF ENTERED**

FILED BY: WOOLFORK, EUGENE

TENTATIVE RULING:

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Defendant filed a Motion, on 4/24/26, to set aside entry of default, under Section 473(b) of the CCP, claiming he was not personally served with process. Defendant writes that his nephew left the "papers" for him on his desk, that at a third party agency did not see his case "in the systems," and that he was experiencing a great amount of stress.

Plaintiff filed a Response, contending that the proof of service, reflecting personal service by a registered process service, which contradicts Defendant's claim. The proof of service, filed 11/3/25, reflects that the server provided the documents to a person at the same address listed by Defendant on his Motion, who acknowledged that he was, in fact, the Defendant.

Default was entered 4/20/26.

Analysis

Section 473.5 of the Code of Civil Procedure allows the court to set aside a default judgment when the defendant does not receive actual notice of the process. Section 473(b) of the CCP which provides the same authority in cases where a defendant acts or fails to act out of mistake, inadvertence, surprise or excusable neglect.

Though Defendant did not explicitly invoke Section 473.5 of the CCP, this court will analyze his Motion under this authority as well, since Defendant claimed he was not personally served.

However, service that is done by a registered process server raises a presumption of valid service, shifting the burden to the Defendant. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795.

Moreover, courts have found that provisions governing notice of service of process are to be liberally construed if actual notice has been received by the defendant. (See *Bein v. Brechtel-Jochim Group, Inc.* (1992) 6 Cal.App. 4th 1387, 1392 (substitute service found where gate guard to a home was given authority to control access to appellants' home; the gate guard's relationship with appellants made it more likely than not that he would deliver process to appellants)).

In the instant matter, the court does not find that Defendant has overcome the presumption that he was actually served. What's more, even assuming the truth of Defendant's assertion, for the sake of argument, Defendant concedes that he did receive the process documents and did have actual notice of the case.

Moreover, this court does not find a sufficient basis to set aside the entry of default for defendant's mistake or inadvertence. The court is sympathetic to the difficulties that Defendant claims he is enduring, but these difficulties appear to be quite general, offer little detail in corroboration, and do not appear to be so unusual that they should excuse the defendant from following the rules of civil procedure.

Disposition

Defendant's Motion is denied.

Plaintiff to file Order and serve Defendant with a copy of the filed Order.

13. 9:00 AM CASE NUMBER: L25-11859
CASE NAME: BANK OF AMERICA N.A. VS. KENNETH JOHNSON
***HEARING ON MOTION IN RE: NTC AND MTC FURTHER RESPONSES TO DEMAND FOR**
PRODUCTION OF DOCUMENTS; REQ. FOR SANCTIONS